



## **STANDING ORDER NO. L&O/27/2022**

### **PROCEDURE REGARDING LODGING OF REPORTS FOR LOSS OF REGISTRATION CERTIFICATE/DRIVING LICENSES ETC.**

#### **I INTRODUCTION**

This Standing Order aims at laying down instructions and procedure regarding reporting of loss of Registration Certificate/ Driving License etc. of motor vehicles to the Police to minimize inconvenience to genuine losers of such documents.

#### **II LEGAL PROVISION**

- (A) The procedure for issue of Duplicate Licenses/Badges in view of loss etc. has been specified under the provisions of Rule-5 of the Delhi Motor Vehicles Rules, 1993, which states that: -
- (1) If at any time a license or a badge is lost by the holder thereof or is destroyed, the holder shall forthwith intimate the facts in writing in Form LLD in case of driving license badge and in Form L.CON.A or in case of conductor's license badge as the case may be, to the licensing authority. The license holder can also avail the online service regarding lost report of badge/license on the Delhi Police office website.
  - (2) Upon the receipt of intimation as aforesaid the licensing authority shall, if he is not the authority by whom the licence was issued, apply to that authority for particulars of the licence and of any endorsements thereon, and after making such enquiries as he thinks fit shall if he is satisfied that a duplicate may properly be issued, issue a duplicate license/badge:

It is suggested that lost report of Driving License be automatically forwarded to issuing authority as well as Traffic Police. So that provision can be made to provide "No challan pending" report online.

Provided that in case of MMV or HMV "No Challan Pending" certificate shall have to be obtained from Delhi Traffic Police before the issue of duplicate license.

- (B) The provision for issue of Duplicate Certificate of Registration/Fitness in view of loss etc. has been specified under the provisions of Rule-32 of Delhi Motor Vehicles Rules, 1993, which states that:-
- (1) For Transport Vehicle-
- (a) If at any time of certificate of registration/fitness of a transport vehicle is lost, destroyed or mutilated, the owner shall forthwith intimate the facts in writing to the registering authority by whom the certificate of registration was issued or by whom the registration mark of the vehicle was assigned under sub-section (6) of Section 41 of the Act and shall apply in the Form 26 to the said authority for the issue of a duplicate certificate of registration. In case certificate of registration has been lost, a copy of the First Information Report lodged with the police shall also be furnished by the owner along with his application. It is suggested that lost report of certificate of registration/fitness be automatically forwarded to issuing authority as well as Traffic Police. So that provision can be made to provide No challan pending report online.
- (b) Upon receipt of an application in Form 26 alongwith a proof of his present residence together with a prescribed fee the registering authority may, after making such enquiries as appear necessary and obtaining a "No Challan Certificate" from the Delhi Traffic Police and the Enforcement Branch of Transport Department and obtaining particulars of the original certificate of fitness from Chief Motor Vehicle Inspector, "No due certificate" from the Recovery Branch of the Transport Department etc., issue on Form 23 a duplicate certificate of registration a certificate of fitness in Form 38 clearly stamped "DUPLICATE" in red ink. It is suggested that lost report of RC/Permit be automatically be forwarded to the issuing authority/authorities concerned. So that NOC/No challan certificate can be obtained online.

### **III PROCEDURE TO BE FOLLOWED**

- (i) Duty Officers in all Police Stations shall, lodge NCR online on the Delhi Police portal if the complainant directly approaches the PS, promptly. A lost report shall be handed to the complainant for submission to the transport Department. Further, a copy of the lost report should be automatically shared with Issuing authority

and Traffic Police for online issue of No Challan pending Certificate.

- (i) The Delhi Traffic Police should issue without any delay the "No Challan Pending" status to each applicant as per the record available and maintained in the Computer Centre, Traffic for facilitating the issue of duplicate copy of the lost document(s). Automated issue of the above certificate should be started for ease of convenience of the complainant.

**SUPERSESSION CLAUSE**

This Standing Order supersedes the previous Standing Order No.183/2010 issued vide No.10351-600/Record Branch/PHQ dated 19.10.2010.

**DISCLAIMER**

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

*Rakesh Asthana*

(RAKESH ASTHANA)

COMMISSIONER OF POLICE:

DELHI. 23.2.2022

No. 7001-8050 /Record Branch/PHQ dated Delhi, the 23/2/2022

Copy forwarded to:-

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2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
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5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
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